

appropriate damage award given the impact decedent's medical conditions could have on his life expectancy.

Sanctions. Defendant requests sanctions in the amount of \$2,450 for attorney fees and costs for bringing the motion. CCP § 2024.050(c) states that "[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The Court will not impose sanctions, as, at the time Plaintiff opposed the motion, there was an upcoming trial date that Plaintiff wished to maintain. The Court finds this reason substantial justification for Plaintiff's opposition to the motion.

The motion is **GRANTED**. The Court orders discovery partially reopened to allow for depositions of decedent's health care providers at Shasta Regional Medical Center and Shasta Community Health. A proposed order was lodged with the Court and will be modified to reflect the Court's ruling.

PERRY VS. FARMER

CASE NUMBER: 26CH-0209631

Tentative Ruling on Motion for Attorney's Fees: Respondent Mark Farmer moves for recovery of attorney's fees. Petitioner Candilyn Perry was timely served with the motion by mail. However, the Opposition was untimely filed. The Opposition was filed on June 26, 2026 and a Supplemental Declaration was filed on June 29, 2026. The Opposition was due on June 22, 2026. CCP § 1005(b). This Court presided over the entirety of this case, including the trial, and recalls the underlying facts. Because the Opposition does not change the Court's tentative ruling, the Court will consider the late-filed Opposition. Respondent may still present oral argument at the time of the hearing.

CCP § 527.6 governs civil restraining orders. Subsection (s) provides that the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any. CCP § 527.6(s). "[A] prevailing defendant can recover attorney fees in an action for injunctive relief against harassment, even if the action was brought in good faith and is not frivolous, if the trial court decides in its discretion to award such fees." *Krug v. Maschmeier* (2009) 172 Cal. App. 4th 796, 798. "The recovery of attorney fees under subdivision (s) of section 527.6 is committed to the trial court's discretion." *Wash v. Banda-Wash* (2025) 108 Cal. App. 5th 561, 568. In determining the amount of attorney's fees to which a litigant is entitled, an experienced trial judge is the best judge of the value of professional services rendered in his or her court. *Granberry v. Islay Investments* (1995) 9 Cal. 4th 738, 752.

Respondent is the prevailing party here, which means the Court has discretion to award fees and costs. The Court recalls the trial in this matter and exercises its discretion to award fees and costs. Counsel for Respondent requests \$7,640. However, the declaration of counsel is insufficient to warrant the amount requested. Timothy M. Prentiss II declared that "I incurred attorney's fees as follows" and goes on to list 5 hours of clerical work billed at \$150 per hour, 18.2 hours of paralegal work billed at \$250 per hour, and 5.5 hours of legal work with 2.7 hours being billed at \$400 per hour and 2.8 hours being billed at \$425 per hour. While it is possible to include paralegal fees in an award of attorney fees, clerical or administrative tasks are not recoverable. *Collins v. City of Los Angeles* (2012) 205 Cal. App. 4th 140. No billing records have been provided to support the paralegal or attorney time. No evidence has been provided to support the hourly rates requested. Therefore, the Court is only able to award attorney's fees based on what the Court can tell from the file.

The trial in this matter was March 19, 2026. The trial started at 1:30 p.m. and court was adjourned at 2:59 p.m. The trial was heard at the same time as an Order to Show Cause Re: Sanctions that issued to Respondent and counsel for failure to file CH-800 as ordered on February 9, 2026. Respondent appeared on one prior occasion to trial which was trial readiness on February 2, 2026. The only other appearances were post trial when Respondent

appeared on April 20, 2026 and June 1, 2026 for hearing on prior Motions for Attorney's Fees that were denied without prejudice for being untimely filed. Other than motions seeking attorney's fees, Respondent has only filed the CH-120 and CH-800. Based on the evidence before the Court, the Court finds that \$2,000 is a reasonable sum for attorney's fees in this matter. This is comprised of five hours of attorney time at the rate of \$400 per hour. The Court declines to award any paralegal time as sufficient evidence has not been provided.

The motion is **GRANTED** and fees will be awarded to Respondent in the amount of \$2,000. Respondent did not provide a proposed Order as required by Local Rule of Court 5.17(D). Respondent is ordered to submit a proposed order consistent with the Court's ruling here.

SPITSEN, ET AL. VS. NOR CAL OIL INC.

CASE NUMBER: 26CV-0210376

Tentative Ruling on Motion for Preference: Plaintiffs Roger Spitsen and Annette Spitsen move for preference pursuant to CCP § 36(a). Despite being properly noticed, Defendant Nor Cal Oil, Inc. did not oppose the motion.

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(b) A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to subdivision (a) shall be given preference over a case subject to this subdivision.

(c) Unless the court otherwise orders:

(1) A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared.

(2) At any time during the pendency of the action, a party who reaches 70 years of age may file and serve a motion for preference.

(d) In its discretion, the court may also grant a motion for preference that is accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference.

(e) Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference.

(f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.

(g) Upon the granting of a motion for preference pursuant to subdivision (b), a party in an action based upon a health provider's alleged professional negligence, as defined in Section 364, shall receive a trial date not sooner than six months and not later than nine months from the date that the motion is granted.

CCP § 36.

The Complaint in this matter was filed on April 14, 2026 and named only one Defendant other than Does. Proof